25CMCV00153 25CMCV00153

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-31

Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

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Case Number: 25CMCV00153 Hearing Date: August 31, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MIGUEL PEREZ TORRES,

Plaintiff,

vs.

GENERAL
MOTORS LLC,

Defendant.

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CASE NO: 25CMCV00153

[TENTATIVE]
ORDER RE: PLAINTIFF’S MOTION FOR ATTORNEY’S FEES

Dept.
A

DATE:
September 1, 2026

TIME:
8:30 A.M.

COMPLAINT
FILED: 01/28/2025

DISPOSED:
01/05/2026

MOVING PARTY: Plaintiff
Miguel Perez Torres

RESPONDING PARTY: Defendant
General Motors LLC

1. Background

This is an action brought under the Song-Beverly Act. Plaintiff Miguel Perez Torres (“Plaintiff”) alleges that on November 21, 2022, he purchased a 2020 Chevrolet Silverado (the “Vehicle”), warranted by Defendant General Motors LLC (“Defendant”). Plaintiff alleges that the Vehicle, within the applicable express warranty period, was delivered with or developed defects and nonconformities to warranty that substantially impaired its use, value, and/or safety.

On November 4, 2025, the parties filed a notice of settlement of the entire case.

2. Discussion

Plaintiff moves for attorney’s fees in the total amount of $11,558.75 as the prevailing party. In support of this motion, Plaintiff provides the declaration of attorney Kevin Y. Jacobson, who provides the hourly rates of himself and attorneys Nicholas Yowarski, Andrew Noseworthy, Matt Xie, Nicholas Lee, Jennifer Guardado, Long Cao, and Stephanie Hovhannisyan, all of whom worked on this case. Attorney Jacobson also provides an itemized set of time entries for the instant action. In opposition, Defendant contends that these fees were not reasonably incurred because Defendant offered to repurchase the Vehicle prior to the onset of litigation and that, irrespective of that, the requested fees are excessive.

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . .¿ The reasonable hourly rate is that prevailing in the community for similar work.¿ The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.”¿ (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021)

64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method”].)

The prevailing
party is entitled to “’compensation for all the hours reasonably spent” in litigating the action to a successful conclusion. (Robertson v. Fleetwood Travel Trailers of California, Inc.¿(2006) 144 Cal.App.4th 785, 821.) ‘Reasonably spent’ means that time spent ‘in the form of inefficient or duplicative efforts is not subject to compensation.’ (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 394.) A plaintiff who receives monetary recovery as part of a settlement agreement is considered to be the prevailing party. (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1156.)

“[T]he
verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”¿ (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)
However, the court may rely on his or her own experience and is given broad discretion in calculating reasonable attorney’s fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["The experienced trial judge is the best judge of the value of professional services rendered in his court...”].)

The lodestar
may be augmented or diminished “by taking various relevant factors into account including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the¿¿fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Ibid.) The multiplier is a risk enhancement based on the probability of loss. (Robertson v. Fleetwood Travel Trailers of California, Inc.¿(2006) 144 Cal.App.4th 785, 821 (Robertson).)

Plaintiff requests $11,558.75 in attorney’s fees,
based on $6,047.00 in base attorney’s fees, a 1.25x multiplier, and an anticipated $4,000.00 in attorney’s fees connected with the instant motion and GM’s motion to tax costs.

Plaintiff has provided a copy of the written settlement agreement between Defendant and Plaintiff, which states that Plaintiff may recover reasonably incurred attorney's fees, costs, and expenses. (Supp. Jacobson Decl., Ex. 1.) Plaintiff is therefore entitled to recover from GM attorney's fees that were reasonably incurred in connection with the commencement and prosecution of this action. (Civ. Code § 1794, subd. (d).)

Defendant contends that, because it offered to repurchase the Vehicle before the onset of litigation, no attorney's fees are reasonable in this action. However, Defendant agreed to the settlement which expressly included an award of reasonable attorney's fees to Plaintiff. A person may not deny the existence of a state of facts if that person was intentionally led others to believe those facts to be true and rely upon such belief to their detriment. (McGlynn v. State of California (2018) 21 Cal.App.5th 548, 561.) Defendant is therefore equitably estopped from arguing that no possible attorney's fees could be reasonable, as Defendant knew of these facts before entering into the settlement agreement and included the attorney's fee provision in its 998 offer to Plaintiff, which Plaintiff accepted. Additionally, to accept a subsequent argument that no possible attorney's fees could be reasonable based on facts known to the parties prior to entering into the settlement agreement would be to render this contractual provision a nullity, which the court declines to do.

The court finds that this case, which was a routine Song-Beverly Act case that did not involve novel issues, extraordinary risk, or protracted litigation does not warrant a lodestar multiplier. Plaintiff's request for a 1.25x attorney's fees multiplier is denied.

Upon the court's review of counsel's declarations, the court finds that the following hourly rates are reasonable: $600 per hour for attorney Kevin Y. Jacobson; $475 per hour for attorney Nicholas Yowarski; $395 per hour for attorney Andrew Noseworthy; $500 per hour for attorney Matt Xie; $500 per hour for attorney Nicholas Lee; $350 per hour for attorney Jennifer Guardado; $500 per hour for attorney Long Cao; and $395 per hour for attorney Stephanie Hovhannisyan.

The court has reviewed each entry on the billing statements submitted by Cabrera's counsel. These billing statements include entries from users not named, and whose rates are not corroborated, in

Attorney Jacobson's declaration, and the court will decline to award attorney's fees for work done by these individuals. Based on the court's review of the billing statement and the arguments advanced by each party, the court finds that Plaintiff has shown a lodestar amount of $5,463.50.

Plaintiff additionally requests $4,000 in anticipated fees in connection with this motion. Attorney Jacobson states in his supplemental declaration that Attorney Hovhannisyan spent 3.9 hours working on this motion at a rate of $395 per hour, totaling $1,540.50, and that he anticipates an additional two hours spent attending the hearing for a total amount requested of $2,330.50. The court finds this amount unreasonable, and will grant attorney's fees in the amount of $1,935.50 in connection with the instant motion.

The court will therefore award total attorney's fees of $7,399.

3. Conclusion

Based on the foregoing, the court GRANTS IN PART Plaintiff's motion for attorney's fees. The court orders that Plaintiff shall recover from Defendant a total of $7,399 in attorney's fees, pursuant to Civil Code § 1794, subdiv. (d).

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: September 1, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court